

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERELLE DUNN,

Plaintiff,

v.

THE CITY OF NEW YORK, New York City
Police Department Officer ARIEL PERALTA
YASCARIB (Shield No. 13628), and NYPD
members/officers John and Jane Does Nos. 1-6,
in their individual capacities

Defendants.

INDEX NO.

SUMMONS

Plaintiff designates New York County as the
County of Venue based on the location where
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney,
at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of
service.

If the summons was not personally delivered to you within the State of New York, the
answer must be served within 30 days after service of the summons is complete as provided
by law.

If you do not serve an answer to the attached complaint within the applicable time
limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for
the County of New York. This action is brought in New York County because it is the place
in which the claim arose.

Dated: June 3, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 
David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JERELLE DUNN,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

-v-

Index No.

THE CITY OF NEW YORK, New York City Police
Department Officer ARIEL PERALTA YASCARIB
(Shield No. 13628), and NYPD members/officers John
and Jane Does Nos. 1-6, in their individual capacities.

Defendants.

-----X

Plaintiff Jerelle Dunn ("Plaintiff" or "Mr. Dunn"), through his attorney David B. Rankin
of Beldock Levine & Hoffman, LLP, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of New York State and New York City.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis assaulted, seized, detained, arrested, and searched him. By reason of the defendants' actions, including defendants' arrest and imprisonment of Plaintiff without probable cause and subjecting Plaintiff to unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional, statutory, and common law rights.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees and costs.

JURISDICTION AND VENUE

4. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under the laws of New York State and New York City.

5. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2021PI014633.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York because the incident took place in New York County, and defendants regularly and substantially conduct business in New York County. C.P.L.R. § 503 (a).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

9. Plaintiff is and was at all times relevant to the action, a resident of Bronx County in the State of New York.

10. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and

the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. New York City Police Department (“NYPD”) Officer ARIEL PERALTA YASCARIB, and NYPD members/officers John and Jane Does 1 – 6 (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD.

12. The true names and shield numbers of defendants P.O. John and Jane Does are not currently known to the Plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

13. The Individual Defendants are being sued in their individual capacities.

14. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

¹ By identifying said defendants as “John Doe” or “Richard Roe,” plaintiff is making no representations as to the gender of said defendants.

15. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

17. On or about March 6, 2021, at approximately 1:00 A.M., New York City Police Department ("NYPD") members approached a vehicle occupied by Plaintiff Jerelle Dunn ("Mr. Dunn") at or around 134th Street between Amsterdam Avenue and Broadway in New York County in the City and State of New York.

18. A witness approached the vehicle and pointed at an individual other than Plaintiff.

19. One white-shirted NYPD member/officer ("John Doe 1") pulled out his service weapon and pointed it at Mr. Dunn.

20. With Mr. Dunn's hands up, the officer grabbed him and took him out of the car.

21. Officers patted down Mr. Dunn, handcuffed him with extremely tight handcuffs, and placed him in an NYPD vehicle.

22. Even before Mr. Dunn entered the NYPD vehicle, he asked officers to loosen the handcuffs, but the officers did not oblige.

23. NYPD officers transported Mr. Dunn to the 30th precinct, where Mr. Dunn was strip searched, fingerprinted, photographed, and placed in a cell.

24. The officers lacked a legal basis for performing the invasive search.

25. Upon information and belief, officers also searched the vehicle that Mr. Dunn occupied, without consent or justification.

26. Mr. Dunn spent hours in custody at the 30th precinct before he was transferred to Central Booking.

27. At Central Booking, Mr. Dunn had no mattress and was made to lay on a metal bench, causing injury.

28. Officers falsely charged Mr. Dunn with robbery, and Mr. Dunn had to attend multiple court appearances.

29. The charge against Mr. Dunn was dismissed on or about May 20, 2021.

30. The Defendants' actions were unlawful and violated Mr. Dunn's constitutional, statutory, and common law rights.

31. As a result of the officers' actions, Mr. Dunn experienced deprivation of liberty, physical injury, pain, suffering, humiliation, and extreme mental and emotional anguish.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

32. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

33. In committing the acts and omissions complained of herein, the Individual Defendants acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from excessive force;

- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- e. the right to be free from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; the right to be free from malicious prosecution; and
- f. the rights of a detainee who is in custody prior to arraignment or trial;
- g. the right to equal protection, privileges, and immunities under the laws;

34. In committing the acts and omissions complained of herein, the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

35. As a direct and proximate result of the Individual Defendants' deprivation of Plaintiff' constitutional rights, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

36. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS –
42 U.S.C. § 1983
(Against defendant the City of New York)

37. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

38. At all times material to the complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

39. At all times material to the complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the Individual Defendants and failed to inform the Individual Defendant's supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

40. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

41. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
BIAS-BASED PROFILING

42. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

43. By initiating law enforcement action against Plaintiff based on his actual and/or perceived race and/or other protected status, other than Plaintiff's behavior or other information linking him to suspected unlawful activity, Defendants and Defendants' agents engaged in bias-based profiling in violation of N.Y.C. Admin. Code § 14-151(c)(1)(i) and (ii).

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM
ASSAULT AND BATTERY**

45. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

46. By the actions described above, defendants did inflict assault and battery upon Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

47. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FIFTH CLAIM
FALSE ARREST and FALSE IMPRISONMENT**

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. By the actions described above, defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM
MALICIOUS PROSECUTION

51. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. Defendants, despite knowing that probable cause did not exist to arrest and initiate the prosecution against Plaintiff, intentionally, recklessly, and with malice caused Plaintiff to arrested and initiated a malicious prosecution against him.

53. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM
VIOLATIONS OF N.Y.C. ADMINISTRATIVE CODE § 8-801, et. seq.

54. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

55. By the actions described above, Defendants violated Plaintiff's right to be secure in his person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C. Administrative Code § 8-802, and Plaintiff seeks redress under N.Y.C. Admin Code § 8-801, *et seq.*

56. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM
INTENTIONAL and NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

57. The Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

58. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

59. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM
NEGLIGENCE

60. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

61. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

62. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

TENTH CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE
LAW VIOLATIONS

63. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

64. The conduct of defendants alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and employees of defendant The City of New York, clothed with and/or invoking state power and/or authority, and, as a result, defendant The City of New York is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

65. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

ELEVENTH CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING

66. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

67. Defendant the City of New York negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

68. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

TWELFTH CLAIM
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

69. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

70. Plaintiff was further deprived of his right to be free from unreasonable detention and cruel and unusual punishment, in violation of New York State Constitution Article 1 § 5, when he was made to stay in a cell in Central Booking without basic needs.

71. The Individual Defendants also deprived Plaintiff of his right to equal protection, in violation of New York State Constitution Article 1 § 11.

72. Plaintiff was further deprived, on more than on occasion during the time he was in custody, of his right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

73. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

74. Plaintiff demands a trial by jury in his action on each and every one of his damage claims.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, deprivation of liberty, physical injury, pain, suffering, mental and emotional anguish and humiliation; and
- b. That he be awarded punitive damages against the Individual Defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of his action; and
- d. For such other further and different relief as to the Court may seem just and

proper.

Dated: June 3, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff Jerelle Dunn.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: June 3, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin